

23SMCV04144 23SMCV04144

County: los-angeles

Division: Civil Law and Motion

Department: 205

Hearing date: 2026-09-01

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Case Number: 23SMCV04144 Hearing Date: September 1, 2026 Dept: 205

Superior Court of California

County of Los Angeles – West District

Beverly Hills Courthouse / Department 205

HARSHAL TOPIWALA,

Plaintiff,

v.

FEREIDOUN KHALILIAN, et al.,

Defendants.

Case No.: 23SMCV04144

Hearing Date: September 1, 2026

[TENTATIVE] order RE:

Defendant's MOTION TO VACATE

entry of DEFAULT and default

judgment

This hearing is on Defendant Fereidoun Khalilian's motion to vacate entry of default and default judgment. Defendant's memorandum of points and authorities has multiple procedural defects. The motion is single spaced which violates the rule against single spacing. (CRC, Rule 2.108(1).) And given the single spacing, the 17-page motion also violates the 15-page limit for non-summary judgment motions. (CRC, Rule 3.1113(d).) A memorandum that exceeds the page limits must be considered in the same manner as a late-filed paper. (Rules of Court, Rule 3.1113(g).) The Court has discretion to refuse to consider late-filed papers, but if it declines to do so, the minutes or order must so indicate. (Rules of Court, Rule 3.1300(d).) The Court declines to consider Defendant's motion to vacate entry of default and default judgment given the procedural defects noted above. The motion is denied without prejudice.

DATED: September 1, 2026 _____

Edward B. Moreton, Jr.

Judge of the Superior Court